

In any event, the “new” issues raised by Plaintiff do not go to the crux of the bases for the Court’s prior rulings underlying the monetary sanctions (or to the determination of the sanctions amounts themselves).

Plaintiff has also failed to show the existence of any mistake, inadvertence, surprise, or excusable neglect on the part of Plaintiff that would warrant the relief sought. Even if somehow tantamount to mistake, inadvertence, surprise, or excusable neglect on Plaintiff’s part, his belated receipt or review of the other party’s opposition papers did not result in the adverse rulings and monetary sanctions against him. Rather, his persistent failure to comply with procedural requirements did.

*The opposing party’s citation to “Rule 3.113” is erroneous.

Disposition

The Court finds and orders as follows:

1. The Motion for Reconsideration is DENIED.
2. The Court shall issue the order after hearing.

9. 9:00 AM CASE NUMBER: C25-03449
CASE NAME: JOHN M.O. ROE VS. OFFICER LEWIS
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: COUNTY OF CONTRA COSTA

TENTATIVE RULING:

Defendant County of Contra Costa (“Defendant”) brings this demurrer to the first amended complaint (“Complaint”) of plaintiff John M.O. Roe (“Plaintiff”). Defendant argues that: (1) the entire Complaint fails due to Government Code section 844.6; (2) the first cause of action for violation of the Bane Act (Civil Code section 52.1) fails to state facts sufficient to constitute a cause of action; (3) the second cause of action for sexual harassment (Civil Code section 51.9) fails to state facts sufficient to constitute a cause of action; (4) the third cause of action for failure to summon medical care fails to state facts sufficient to constitute a cause of action; (5) the fourth cause of action for negligence fails to state facts sufficient to constitute a cause of action; (6) the fifth cause of action for negligent supervision fails to state facts sufficient to constitute a cause of action; (7) the sixth cause of action for negligent hiring and retention fails to state facts sufficient to constitute a cause of action; and (8) the seventh cause of action for negligent failure to warn, train, or educate fails to state facts sufficient to constitute a cause of action.

For the reasons discussed below, the Court **SUSTAINS** Defendant’s demurrer to Plaintiff’s Complaint, in full, with leave to amend. Plaintiff may file and serve a second amended complaint within 20 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Lauren B. Fazio Decl., ¶¶ 2-4; Code Civ. Proc., § 430.41, subd. (a)(3)(A).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

Where a pleading includes a general allegation, such as an allegation of an ultimate fact, as well as specific allegations that adds *details* or *explanatory facts*, it is possible that a conflict or inconsistency will exist between the general allegation and the specific allegations. To handle these contradictions, California courts have adopted the principle that specific allegations in a complaint control over an inconsistent general allegation.” (*Perez v. Golden Empire Transit District* (2012) 209 Cal.App.4th 1228, 1235-1236, italics added.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) “However, leave to amend should not be granted where, in all probability, amendment would be futile.” (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Background: Facts Alleged in Complaint

Plaintiff’s Complaint contains paragraphs 1-60 in the first 16 pages and then begins at paragraph 1 again on page 16 and proceeds to continue to paragraph 186 on page 60. For clarity, citations to the Complaint will be to a page and paragraph number. **Plaintiff is admonished to avoid such confusing number scheme in connection with any amended pleading.**

In approximately 2003-2004, Plaintiff was around 17 years old when he found himself under a court ordered confinement at Orin Allen Youth Rehabilitation Facility, a juvenile detention facility. (Complaint, p. 4, ¶¶ 11-12; p. 12, ¶¶ 37-38; p. 17, ¶ 2.) During this time, one of the staff who had supervision and control of Plaintiff was a Caucasian female probation officer, who was approximately 5 feet tall and had a heavy-set build (“Officer Lewis”). (Complaint, p. 17, ¶ 2.) Plaintiff alleges that Officer Lewis used control and isolation to coerce him into sexual conduct that included oral sex and sex, in addition to other sexual activity. (*Id.* p. 17, ¶ 3.) Due to the sexual abuse Plaintiff suffered, he experienced depression, anxiety, insomnia, sexual identity issues, lowered self-esteem, nightmares, stress, embarrassment, shame, and loss of enjoyment of life, among other issues. (*Id.* p. 18, ¶ 8.)

Plaintiff seeks past, present, and future general damages in an amount to be determined at trial, special damages, attorney fees and costs, interest, and as to the individual defendants, seeks exemplary damages. (Complaint, pp. 60-61.)

Discussion

Government Code section 844.6

Defendant's Position

Defendant contends that it is subject to absolute immunity and is not liable for any injuries to Plaintiff pursuant to Government Code, section 844.6, subdivision (a)(2), which provides that "a public entity is not liable for . . . An injury to any prisoner." (MPA ISO Demurrer, pp. 9-10)

Defendant discusses that in *Jiminez v. County of Santa Cruz* (1974) 42 Cal.App.3d 407, the court was called upon to determine whether the term "prisoner" as used in Section 844.6, subdivision (a), subsection (2), encompassed a "ward of a juvenile court declared under Welfare & Institutions Code section 602 and under placement by that court." After reviewing available legislative comments, the court concluded, "that the Legislature intended that the word 'prisoner' included (sic) all inmates of any facility in which they were placed by the courts of law." (*Jiminez v. County of Santa Cruz* (1974) 42 Cal.App.3d 407, 410). (MPA ISO Demurrer, pp. 9-10.)

Defendant then asserts that in *Patricia J. v Rio Linda Union School District* (1976) 61 Cal.App.3d 278, the court held that, "a foster care agency in which restraints on individual freedoms are exerted would properly be categorized as an institution whose inmates are considered prisoners, as would a juvenile hall." (*Patricia J. v Rio Linda Union School District* (1976) 61 Cal.App.3d 278, 287). The court acknowledged Welfare and Institutions Code section 851, which provides that a juvenile hall should not be treated as a penal institution, but held "[n]evertheless, if a ward is placed there [juvenile hall], he is a prisoner in the sense that he was in custody as the result of a legal process. Our definition of a prisoner applies equally to wards of the juvenile court as well as to adults." (*Id.*) (MPA ISO Demurrer, p. 10.)

Defendant argues that Plaintiff "acknowledges that he was in custody, confined, and incarcerated at the Facility, quintessential characteristics of a prisoner. (FAC at ¶ 1 (16:25-27.) Roe was a ward of a juvenile court per Welfare & Institutions Code section 602(a) and qualified as a 'prisoner' for purposes of the immunity set forth in Section 844.6(a)(2)." (MPA ISO Demurrer, p. 10.) Defendant goes on to assert that no exceptions exist in this matter and that Civil Code section 52.1 does not void the statutory immunity under Government Code section 844.6. (MPA ISO Demurrer, pp. 10-11.)

Plaintiff's Position

Plaintiff argues that Section 844.6 does not apply because a child in a county juvenile rehabilitation facility is not a "prisoner" and the defense does not clearly appear on the face of the Complaint. (Opposition, p. 9.) Plaintiff asserts that the statutory text and scheme exclude detained children from the definition of "prisoner" because of the state legislature's focus on not treating juvenile offenders as needing punitive incarceration from crime but rather focus on treatment, guidance, and rehabilitation. (*Ibid.*)

Plaintiff argues that the "County's half-century-old authorities do not control this pleading," and asserts that the cases *Jiminez* and *Patricia*, cited by Defendant, predate the state legislature's modern restructuring of juvenile justice and the 2019 enactment of Assembly Bill 218 that revived childhood sexual assault claims against public entities. (Opposition, p. 10.)

Plaintiff points out that Defendant does not cite one case in which a court extinguished a revised

section 340.1 claim brought by a survivor of childhood sexual assault in a county juvenile detention facility. (Opposition, p. 10.)

Plaintiff then asserts that the defense does not clearly and affirmatively appear on the face of the pleading because “[t]he FAC alleges confinement at a youth rehabilitation facility and probation camp operated for the care and rehabilitation of minors. (FAC ¶¶ 11-12, 17 [p. 19].) Whether that facility, in 2003-2004, constituted a “prison, jail, or penal or correctional facility” within section 844 is at best a factual question that cannot be resolved against Plaintiff on demurrer.” (Opposition, p. 10.)

Plaintiff contends that the County’s construction would nullify AB 218 for the most vulnerable class of survivors. (Opposition, p. 10.) “Under the County’s reading, every child raped while locked in a county facility — children over whom the government exercised total control — would be categorically remediless, while children abused in public schools may recover. Nothing suggests the Legislature intended that perverse result, and this Court should not presume it.” (*Ibid.*)

Finally, Plaintiff argues that even if Plaintiff were a prisoner under Section 844.6, that the third cause of action, failure to summon medical care, falls within the express exception to Section 844.6. (Opposition, p. 11.)

Defendant’s Reply

On reply, Defendant argues that “Orin Allen Youth Rehabilitation Facility, as a secure detention facility holding minors by court order with restricted liberty, constitutes a ‘correctional facility’ under any ordinary meaning of that term, and *Jiminez v. County of Santa Cruz* (1974) 42 Cal.App.3d 407 applied section 844.6 to juvenile detainees and has not been legislatively overruled, as the subsequent amendments to section 202 and section 851 addressed facility conditions and purposes rather than the immunity framework of section 844.6.” (Reply, p. 5.) Defendant asserts that whether Orin Allen Youth Rehabilitation Facility is a correctional facility is a question of law “because it turns on the legal character and statutory framework governing the facility rather than on disputed historical facts. The FAC itself alleges that Roe was confined ‘by court order’ at a secure facility operated by County’s probation department. If taking these facts as true, they establish as a matter of law that the facility constitutes a correctional facility within section 844, because court ordered confinement in a probation operated secure facility is the defining characteristic of a correctional setting.” (*Id.* at pp. 5-6.) Defendant asserts that none of the enumerated exceptions apply, and that Plaintiff’s Government Code section 845.6 claim (failure to furnish medical care) is not adequately pled because the allegations do not show there was a need for immediate medical care and even if it did it was not revived by Civil Code section 340.1. (*Id.* at pp. 6-7.)

Analysis of Applicability of Government Code section 844.6 to This Case

First, the Court finds that Government Code section 844.6 applies to this case. There is no question of fact or law about this, Plaintiff affirmatively pleads in the Complaint that he was “a minor in the custody . . . and confined at . . . a juvenile detention facility” when he “was approximately 17 years old . . .” and that this was “court ordered and mandatory. . .” (Complaint, pp. 16-17, ¶¶ 1-2; p. 12, ¶ 38.) He pleads that California Code of Regulations Title 15, section 3401.5 applies and bars any and all sexual conduct between himself and defendant Officer Lewis because the legal concept of “consent” does not apply between an inmate and the departmental staff. (*Id.* at p. 13, ¶ 42.) California Code of Regulations Title 15, section 3401.5, subdivision (a) provides that “For the purposes of this section, staff sexual misconduct means any sexual behavior by a departmental employee, volunteer, agent or

individual working on behalf of the Department of Corrections and Rehabilitation, which involves or is directed toward an incarcerated or supervised person.” Plaintiff further alleges that there was a special relationship here because “the jailer has control over the minor in custody. . .” (*Id.* at p. 19, ¶ 15.) Plaintiff alleges that “minors within the juvenile justice system were habitually sexually abused and assaulted. . .” (*Id.* at p. 13, ¶ 46.) Plaintiff alleges that “To highlight the issue of sexual assault for people in custody the federal court passed the Prison Rape Elimination Act.” (*Id.* at p. 23, ¶ 28.)

In ruling upon demurrers, courts treat as being true “not only the complaint’s material factual allegations, but also facts that may be implied or inferred from those expressly alleged.” (*Poseidon Development, Inc. v. Woodland Lane Estates* (2007) LLC, 152 Cal.App.4th 1106, 1111-1112.) Here, considering Plaintiff’s allegations described above, he was clearly in the custody of a juvenile detention facility for which Section 844.6 covers. The statute itself and caselaw make clear that Section 844.6 applies to juveniles who are in the situation that Plaintiff pleads he was in. The 1963 Legislative Committee Comment provides that “[t]he immunity provided to public entities by this section prevails over all other provisions of the statute. Thus, the public entity is immune from liability for injuries to prisoners (*which includes wards of the juvenile court*). . .” (Gov. Code, § 844.6, 1963 Com. com. [italics added].)

In *Jiminez*, it was alleged that a minor “drowned in the Merced River through the negligence and carelessness of the . . . Defendants State of California and County of Santa Cruz. . .” (*Jiminez v. County of Santa Cruz* (1974) 42 Cal.App.3d 407, 409.) The surviving family members sued for wrongful death. (*Id.* at p. 408.) It was “conceded that at the time of his drowning Leo was a juvenile under the direction and control of defendant by reason of a juvenile court placement. . .” (*Id.* at p. 409.) The trial court there found the action had no merit as to the County of Santa Cruz and ordered the action dismissed and entered judgment in favor of the County of Santa Cruz. (*Ibid.*) The Court of Appeal affirmed on the basis of Government Code section 844.6, stating that “the term ‘prisoner’ is to be broadly interpreted.” (*Ibid.*) The Court ruled that “the Legislature intended that the word ‘prisoner’ included all inmates of any facility in which they were placed by the courts or law.” (*Id.* at p. 410) Despite the plaintiffs in *Jiminez* arguing that juvenile proceedings are of a civil rather than criminal nature, as Plaintiff in this case similarly argues, the court in *Jiminez* ruled that a juvenile is a prisoner under Section 844.6 when “he is involuntarily restrained and deprived of his liberty by judicial process,” which is exactly what Plaintiff alleges in this case. (*Id.* at pp. 410-411) As stated above, Plaintiff here alleges that he was “a minor in the custody . . . and confined at . . . a juvenile detention facility” when he “was approximately 17 years old . . .” and that this was “court ordered and mandatory. . .” (Complaint, pp. 16-17, ¶¶ 1-2; p. 12, ¶ 38.) Thus, Section 844.6 applies to this case. As stated in *Patricia*, “we conclude that to come within the purview of section 844.6, a prisoner must be a person confined in a correctional facility or institution under the authority of law enforcement authorities or legal process. Our definition of a prisoner applies equally to wards of the juvenile court as well as to adults.” (*Patricia J. v. Rio Linda Union Sch. Dist.* (1976) 61 Cal.App.3d 278, 287.)

Plaintiff’s argument that *Jiminez* and *Patricia* are old cases and that Defendant does not cite to one case in which a court used Section 844.6 in regards to a claim of sexual assault made pursuant to Civil Code section 340.1, is not persuasive as Plaintiff cites no legal authority to oppose or even call into question the continuing legal authority of *Jiminez* and *Patricia*, which are published Court of Appeal opinions that bind this superior court. “Under the doctrine of stare decisis, all tribunals exercising inferior jurisdiction are required to follow decisions of courts exercising superior jurisdiction. Otherwise, the doctrine of stare decisis makes no sense. The decisions of this court are binding upon and must be followed by all the state courts of California. Decisions of every division of the District

Courts of Appeal are binding upon all the justice and municipal courts and upon all the superior courts of this state, and this is so whether or not the superior court is acting as a trial or appellate court. Courts exercising inferior jurisdiction must accept the law declared by courts of superior jurisdiction. It is not their function to attempt to overrule decisions of a higher court.” (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455.)

Plaintiff’s argument that applying Section 844.6 to this case would nullify AB 218 for the most vulnerable class of survivors is also unavailing. Plaintiff cites to nothing in AB 218 or Section 340.1 that addresses Section 844.6 and abrogates it. (See *Towery v. State of California* (2017) 14 Cal.App.5th 226, 234 [“Make no mistake, we recognize the human and social significance of this case; however, we are bound by the law. Civil Code section 52.1 does not address the immunity established by section 844.6. Nothing in Civil Code section 52.1 indicates an intent to abrogate this specific immunity provision. The immunity that it creates therefore applies”].) It is not the function of this Superior Court to overrule decisions of higher courts. (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455.) Policy arguments, no matter how compelling or persuasive, do not control over binding Court of Appeal authority. (See *ibid.*) The Court will sustain Defendant’s demurrer to the Complaint based on Government Code section 844.6.

Exceptions to Section 844.6

Plaintiff properly asserts that he pleads a claim under Government Code section 845.6 (titled “Failure to furnish prisoner medical care”), which is an enumerated exception to Section 844.6. (Gov. Code, §§ 844.6, subd. (a); 845.6; Opposition, p. 11; Complaint, pp. 29-31, ¶¶ 35-46; pp. 36-40, ¶¶ 68-77.) Defendant argues that Plaintiff has not properly pled this claim because the allegations do not show there was a need for immediate medical care and even if it did it was not revived by Civil Code section 340.1. (MPA ISO Demurrer, p. 12; Reply, pp. 6-7.)

“Liability under section 845.6 is limited to serious and obvious medical conditions requiring immediate care.” (*Watson v. State of California* (1993) 21 Cal.App.4th 836, 841.) Plaintiff pleads that “[t]he sexual assault and abuse inflicted upon PLAINTIFF constituted a serious and obvious medical condition requiring immediate care. Sexual assault creates urgent medical needs, including the risk of physical trauma, unintended pregnancy, and sexually transmitted infections, as well as the acute psychological impact of trauma requiring emergent mental health intervention.” (Complaint, p. 30, ¶ 40.) However, these are broad and conclusory statements that do not provide the Court with any **facts** about what serious and obvious medical condition Plaintiff actually suffered from the alleged sexual abuse. He seemingly could not get pregnant, and it is not clear how a potential STD is obvious.

For example, Paragraph 41 on page 30 states some general lists, but these do not state any actual facts about Plaintiff. Plaintiff alleges that Defendants knew or had reason to know that Plaintiff was in need of immediate medical care by reason of “Their receipt of complaints, disclosures, or observable signs that Plaintiff had been victimized.” (Complaint, p. 30, ¶ 41.) However, there is no allegation that Plaintiff complained to anyone about the sexual assault. Nor are there facts alleged about what the “observable signs” were that he had been victimized. Plaintiff continues to identify how Defendant knew or should have known he needed medical care, “Their awareness of Plaintiff’s physical injuries, psychological distress, or requests for help.” (*Ibid.*) Again, what physical injuries? Who did he request help from? Plaintiff alleges that he “exhibited injuries and presented with behavioral and emotional signs indicating a need for immediate medical care. Despite this knowledge DEFENDANTS, and each of them, failed to summon or provide immediate medical care for Plaintiff.” (*Id.* at p. 39, ¶ 73.) This is

conclusory because it does not state *what injuries* he exhibited or *what behavioral or emotional signs* he displayed that indicated a need for immediate medical care.

“When a complaint complies with the fact-pleading requirement of section 425.10, subdivision (a)(1), [t]he existence of a legal right in an abstract form is never alleged by the plaintiff; but, instead thereof, the facts from which that right arises are set forth, and the right itself is inferred therefrom.” (*Davaloo v. State Farm Ins. Co.* (2005) 135 Cal.App.4th 409, 415, internal quotations omitted.) Here, Plaintiff has not set forth sufficient facts from which the legal right may be inferred. Further, this is a statutory cause of action based on Government Code section 845.6, which means that Plaintiff should plead the facts with particularity. (*Covenant Care, Inc. v. Super. Ct.* (2004) 32 Cal.4th 771, 790 [California Supreme Court describing the “general rule that statutory causes of action must be pleaded with particularity”].)

The Court finds that Plaintiff has not properly pled facts sufficient to show that Plaintiff suffered a serious and obvious medical condition requiring immediate care under Government Code section 845.6. The Court is not saying that if Plaintiff adds these facts to his allegations, he will state a claim, but the Court cannot determine whether he has stated a claim without facts being pled instead of generic and broad assertions. Additionally, without knowing the serious and obvious medical condition(s) requiring immediate care, the Court cannot properly evaluate or assess whether Section 340.1 would or would not apply. The Court will sustain Defendant’s demurrer to this cause of action based on Plaintiff’s failure to plead sufficient facts to constitute a cause of action based on Government Code section 845.6.

Leave to Amend

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) The Court will grant Plaintiff leave to amend.

Ruling

Based on the analysis above, the Court **SUSTAINS** Defendant’s demurrer to Plaintiff’s Complaint, in full, with leave to amend. Plaintiff may file and serve an amended complaint within 20 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

10. 9:00 AM CASE NUMBER: C26-00282
CASE NAME: BREONNA WILLIAMS VS. SHONTELL WILLIAMS
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS COMPLAINT**
FILED BY: WILLIAMS, SHONTELL
TENTATIVE RULING:

Before the Court is a motion by defendants John Stewart Company and Shontell Williams to strike portions of Plaintiff's complaint. For the reasons set forth, the motion is **GRANTED IN PART** and **DENIED IN PART**, as detailed below.

Background

Plaintiff alleges she was a residential tenant at the property located at 2833 Martin Luther King Jr. Avenue in Richmond (the "Property") for approximately two years from November 2023 until